

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

FORMUKLEEN, INC., *Complainant*

v.

TOP SHIPPING SYSTEMS, CORP., *Respondent*.

DOCKET NO. 25-08

Served: September 17, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

**ORDER DENYING IN PART RESPONDENT TOP SHIPPING SYSTEMS CORP.'S MOTION FOR
CONFIDENTIAL TREATMENT**

On September 16, 2026, Respondent filed Respondent Top Shipping Systems, Corp.'s Motion for Confidential Treatment ("RMCT"), and accompanying proposed confidential appendix.¹ Among other things, Respondent asks that copies of two bills of lading (RX-000101 and RX-000111) be afforded confidential treatment because they contain "Non-public confidential commercial and shipment information."

The RMCT is **DENIED IN PART** to the extent it seeks confidential treatment of copies of the two bills of lading (RX-000101 and RX-000111). Copies of each have both been filed previously by Respondent without any requests for confidential treatment. (*See* Respondent's Response to the Motion for Summary Judgment, at Exhibits B and C; *see also* Motion to Dismiss for Lack of Jurisdiction, Exhibits B and C). Therefore, any basis for confidential treatment has been waived. (*See TZ SSE Buyer, LLC v. COSCO Shipping Lines Co., Ltd.*, Dkt. No. 24-09, 2025 WL 2684428, at *1-2 (ALJ Sept. 11, 2025) (denying a motion for confidential treatment due to waiver where information for which confidential treatment was sought had been disclosed)).

Respondent is **HEREBY ORDERED** to submit a revised motion for confidential treatment, a proposed public appendix, and proposed confidential appendix (*see* Initial Order, ¶¶ 34-36), that are consistent with this order (in other words, including no redactions on RX-000101 and RX-000111) no later than **September 24, 2026**. The revised filings may maintain requests for confidentiality as to other materials for which confidential treatment is sought.

Richard C.

Ambrow Jr -S

Richard Ambrow

Administrative Law Judge

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Ambrow Jr -S

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¹ The appendix submitted September 16, 2026, has different redactions than the one submitted September 11, 2026. I will treat the one submitted September 16, 2026, as a corrected version.